

## **INTRODUCTION**

The United States respectfully submits this Suggestion of Immunity to inform the Court of the Executive Branch’s determination regarding the immunity of former Israeli Minister of Defense Ehud Barak in this action.<sup>1</sup> This case implicates principles of foreign official immunity, and the United States has strong interests in ensuring the correct application of those principles as accepted by the Executive Branch. The Department of State has made the determination, to which the Court must defer, that Barak is immune from suit under the common law. *See* Attached Exhibit. In arriving at this determination, the United States emphasizes that it expresses no view on the merits of Plaintiffs’ claims.

## **BACKGROUND**

Plaintiffs Ahmet and Hikmet Doğan bring suit individually and on behalf of their deceased son, Furkan Doğan (“Doğan”), who was killed by Israeli Defense Forces (“IDF”) during their interception of six vessels bound for Gaza in 2010. Compl. ¶¶ 1–3. They proffer claims under the Torture Victim Protection Act (“TVPA”), Pub. L. No. 102–256, 106 Stat. 73 (codified at 28 U.S.C. § 1350 note), the Alien Tort Statute, 28 U.S.C. § 1350, and the Anti-Terrorism Act, 18 U.S.C. § 2331 et seq. Compl. ¶¶ 59–125. In support of their claims, Plaintiffs allege that in planning, directing, and ordering the IDF operation and exercising command responsibility, “Barak knew or should have known that his subordinates . . . had committed, were committing, or were about to commit human rights abuses . . . [and] failed to prevent the abuses.” *Id.* ¶¶ 63, 70, 78, 84, 90, 99, 110, 121. Plaintiffs seek compensatory and punitive damages. *Id.* ¶ 1.

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<sup>1</sup> The United States submits this filing pursuant to 28 U.S.C. § 517, which provides that “any officer of the Department of Justice[] may be sent by the Attorney General to any State or district in the United States to attend to the interests of the United States in a suit pending in a court of the United States, or in a court of a State, or to attend to any other interest of the United States.”